

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Julia Moran	Team: Squad #06	CCRB Case #: 202103469	☐ Force	☒ Discourt.	☒ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 06/05/2021 4:50 PM	Location of Incident: Lafayette Avenue and Marcy Avenue	18 Mo. SOL 12/5/2022	Precinct: 79		
Date/Time CV Reported Tue, 06/08/2021 10:13 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 06/08/2021 10:13 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. LT Larry Meyers	00000	939030	079 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Kevin Parraga	26795	969276	079 PCT

Officer(s)	Allegation	Investigator Recommendation
A . LT Larry Meyers	Discourtesy: Lieutenant Larry Meyers acted discourteously toward § 87(2)(b)	A . Substantiated
B . LT Larry Meyers	Abuse of Authority: Lieutenant Larry Meyers damaged § 87(2)(b) property.	B . Unsubstantiated
C . LT Larry Meyers	Untruthful Statement: Lieutenant Larry Meyers provided a false official statement to the CCRB.	C . Substantiated

Case Summary

On June 8, 2021, § 87(2)(b) reported the following complaint online with the CCRB.

On June 5, 2021, at approximately 4:50 p.m., § 87(2)(b) was riding her bicycle when she was stopped by officers from the 79th Precinct for running a red light on Lafayette and Marcy Avenue in Brooklyn. § 87(2)(b) got off her bicycle to move away when Lt. Larry Meyers grabbed the bicycle's handlebar to stop her. Lt. Meyers then threw § 87(2)(b)'s bicycle behind him **(Allegation A: Discourtesy – substantiated)**. When § 87(2)(b) went to check her bicycle, she saw the chain was broken and stuck between the gears **(Allegation B: Abuse of Authority – unsubstantiated)**. § 87(2)(b) then left the location. Lt. Meyers provided a false official statement to the CCRB **(Allegation C: Untruthful Statement – substantiated)**.

§ 87(2)(b) was issued two summonses for failure to stop at a red light and operating a bicycle with more than one earphone in (BR 01).

Two BWC videos were obtained in regards to this incident (BR 02 – 03).

Findings and Recommendations

Allegation (A) Discourtesy: Lieutenant Larry Meyers acted discourteously toward § 87(2)(b).

It is undisputed that Lt. Meyers' pushed § 87(2)(b)'s bicycle to the ground.

Lt. Meyers' BWC does not have audio for the first minute at the beginning of the stop. At the 1:11 minute mark of Lt. Meyers' BWC, § 87(2)(b) asked Lt. Meyers to put a mask on while she stood with her bicycle between her legs. She then began to walk forwards with the bicycle still between her legs. Lt. Meyers put a hand on her bicycle's handlebars and told her that she was not going anywhere. He then asked her to get off her bicycle and she complied. After § 87(2)(b) got off her bicycle, Lt. Meyers moved the bicycle back and pushed it to the ground. § 87(2)(b) remained by her bicycle. § 87(2)(b) asked Lt. Meyers at the 6:58 mark why he threw her bicycle on the ground. Lt. Meyers responded that he told her to stop multiple times and she kept riding her bicycle, which was a safety issue (BR 02).

§ 87(2)(b) testified that as she was riding her bicycle, officers inside of the police vehicle were speaking to her, but she could not recall what they said. The officers did not put on the vehicle's light or sirens or make any indication that they wanted § 87(2)(b) to stop. She stopped because the police vehicle was blocking her path. After she was stopped for the red light violation, she spoke to Lt. Meyers, she continuously asked him to put his mask on and he ignored her request. Since Lt. Meyers would not put his mask on, she decided to move away from him. § 87(2)(b) got off her bicycle and Lt. Meyers immediately grabbed the middle bar between the seat and handlebars and then threw her bicycle behind him. The bicycle landed about three feet away from where they were standing. Lt. Meyers never said anything about § 87(2)(b)'s bicycle or issued any commands to move it. When she asked the officers why Lt. Meyers threw her bicycle, no one responded (BR 04 – 06).

Lt. Meyers testified that while trying to indicate for § 87(2)(b) to stop riding, he activated lights, sirens, and verbally asked her to stop three times. She did not comply immediately and continued to bicycle for about one city block. Approximately 10 seconds into the stop, § 87(2)(b) tried to escape by riding her bicycle away. She was able to travel about a foot or two before Lt. Meyers

placed a hand on § 87(2)(b)'s bicycle and told her to get off. § 87(2)(b) complied, but was concerned that Lt. Meyers was not wearing a mask and asked him to put a mask on. Lt. Meyers then let go of § 87(2)(b)'s bicycle and went back to his police vehicle to put his mask on. The bicycle fell right in front of Lt. Meyers' feet. At no point did Lt. Meyers throw § 87(2)(b)'s bicycle to the ground. Lt. Meyers still suspected § 87(2)(b) was going to flee the scene and was a safety concern after she got off of her bicycle because she was initially non-compliant when asked to stop and tried to flee in the beginning of the incident. Upon reviewing his BWC, Lt. Meyers confirmed his testimony was still that he let § 87(2)(b)'s bicycle go and did not push or throw it to the ground (BR 07).

The NYPD is committed to accomplishing its mission by treating every citizen with compassion, courtesy, professionalism and respect. Officers pledge to value human life, respect the dignity of each individual and render our services with courtesy and civility, Patrol Guide Section 200-02 (BR 08).

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

[REDACTED] It is therefore recommended that **Allegation A** be closed as **substantiated**.

Allegation (B) Abuse of Authority: Lieutenant Larry Meyers damaged § 87(2)(b)'s property.

At the 6:51 mark of Lt. Meyers' BWC, § 87(2)(b) turned her bicycle so that the wheels were facing up and the handles were on the ground. At 10:09 minutes, § 87(2)(b) said that she needed someone to fix her bicycle so she could get to work. The video does not clearly depict if there is any damage.

§ 87(2)(b) testified that after Lt. Meyers threw her bicycle, she went to check it and saw the chain was broken and stuck between the back gears. § 87(2)(b) tried to fix it but was unable to and had to go to a repair shop to fix it. § 87(2)(b) did not take any pictures of the damage.

Lt. Meyers testified that approximately five minutes after Lt. Meyers let go of § 87(2)(b)'s bicycle, she complained that there was damage to it. She flipped her bicycle, so the handlebars were on the ground and the tires were up. Lt. Meyers did not see any damage to the bicycle at any point

and the bicycle appeared to be in good working condition.

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **unsubstantiated**.

Allegation (C) Untruthful Statement: Lieutenant Larry Meyers provided a false official statement to the CCRB.

Lt. Meyers stated that when § 87(2)(b) asked him to put a mask on, he let go of her bicycle to return to his vehicle and put his mask on. The bicycle fell in front of his feet and he did not throw the bicycle to the ground. Lt. Meyers testified that he watched his own BWC the day of the interview. Additionally, during the interview, Lt. Meyers watched his BWC from 1:10 minutes to 1:21 minutes. After watching his BWC, Lt. Meyers maintained that he let § 87(2)(b)'s bicycle go. The same BWC portion was then shown, frame by frame. Lt. Meyers still testified that he let go of § 87(2)(b)'s bicycle and did not use any force when letting the bicycle go (BR 7).

At the 1:11 minute mark of Lt. Meyers' BWC, § 87(2)(b) asked Lt. Meyers to put a mask on while she stood with her bicycle between her legs. She then began to walk forwards with the bicycle still between her legs. Lt. Meyers put a hand on her bicycle's handlebars and told her that she was not going anywhere. He then asked her to get off her bicycle and she complied. After § 87(2)(b) got off her bicycle, Lt. Meyers moved the bicycle back and pushed it to the ground (BR 2).

A false official statement is an intentional statement that a member of the service knows to be untrue, which is material to the outcome of an investigation, proceeding, or other matter in connection with which the statement is made. Administrative Guide Procedure 304-10 (BR).

§ 87(2)(g)

it is recommended that **Allegation C** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 09).
- Lt. Meyers has been a member of service for 16 and has been a subject in 27 CCRB complaints and 50 allegations, of which two were substantiated (BR 10):
 - 200606811 involved allegations of question and/or stop and threat or arrest and was closed as complainant uncooperative.
 - 200614034 involved allegations of question and/or stop, which was exonerated and search of person, which was substantiated. Charges were brought and the NYPD imposed instructions.
 - 200718101 involved an allegation of threat of arrest that was closed as complainant uncooperative.

- 200900604 involved allegations of property damaged, which was unsubstantiated and question, which was exonerated.
- 200907990 involved allegations of threat of arrest and discourteous word and was closed as complainant unavailable.
- § 87(2)(b) [REDACTED]
- 200918924 involved an allegation of a strip search and was closed as unsubstantiated.
- 201100044 involved an allegation of a strip search and was closed as unsubstantiated.
- 201103827 involved allegations of frisk and search of person and was closed as exonerated.
- 201106817 involved an allegation of discourteous word and was closed as unsubstantiated.
- 201108335 involved allegations of discourteous word and offensive language and was closed as complainant unavailable.
- 201303904 involved allegations of nightstick as club, which was unsubstantiated and physical force, which was exonerated.
- 201307210 involved allegations of question, which was exonerated, threat of arrest and discourteous word which were unsubstantiated. § 87(2)(g), § 87(4-b) [REDACTED]
- 201309195 involved an allegation of a search of person and was closed as complainant unavailable.
- 201400259 involved allegations of strip search, which was exonerated § 87(2)(g), § 87(4-b) [REDACTED]
- 201403448 involved an allegation of a nightstick as club and was exonerated.
- 201503943 involved allegations of physical force and vehicle search, which were exonerated and offensive language, which was unfounded.
- 201509022 involved an allegation of offensive language and was unsubstantiated.
- 201509909 involved allegations of threat of summons and discourteous word and was closed as unsubstantiated.
- 201702911 involved allegations of refusal to provide name/shield number and discourteous word and was unsubstantiated.
- 201707423 involved allegations of nightstick as club and physical force and was closed as alleged victim unavailable.
- 201709835 involved an allegation of hit against inanimate object and was closed as complainant uncooperative.
- 201801963 involved an allegation of physical force and was unsubstantiated.
- 201810259 involved allegations of failure to provide RTKA card, which the Board recommended instructions and the NYPD imposed instructions, failure to provide RTKA card, refusal to process civilian complaint, refusal to provide name, threat of arrest, and offensive language, which were unsubstantiated.
- 201903339 involved an allegation of refusal to obtain medical treatment and was closed as mediation attempted.
- 201904810 involved allegations of entry of premises, which was closed as alleged victim uncooperative and entry of premises and forcible removal to hospital, which were exonerated.
- 201905488 involved an allegation of interference with recording and was closed as exonerated.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of November 1, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (BR 13).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Squad: 6

Investigator:	Julia Moran	Inv. Julia Moran	10/27/2021
	Signature	Print Title & Name	Date

Squad Leader:			
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date